

SAMPLE TEST CONTRACT 4 — Detailed NDA (For Summarization Testing)

TESTING NOTE (remove before feeding to system): This is a longer, more complex NDA with 10 detailed clauses, meant to test the SUMMARIZATION module. After running your summarizer, manually check whether the generated summary captures the key points: 3-year term, 5-year survival of confidentiality, 2-year non-use for competing products, injunctive relief remedy, and arbitration in Noida. Also useful for testing clause extraction (10 distinct clauses to identify).

This Non-Disclosure and Confidentiality Agreement ("Agreement") is entered into on 5th April 2026, by and between Vortexa Analytics Pvt. Ltd., having its registered office at Sector 62, Noida ("Disclosing Party"), and Meera Consulting Group, having its office at Sector 18, Noida ("Receiving Party"), collectively the "Parties", in connection with a potential data-analytics partnership (the "Purpose").

1. Background

WHEREAS the Disclosing Party possesses certain proprietary algorithms, datasets, business strategies, and technical documentation related to its analytics platform; AND WHEREAS the Receiving Party wishes to evaluate a potential collaboration involving access to certain aspects of this information; NOW THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows.

2. Definition of Confidential Information

"Confidential Information" shall include, without limitation: (a) all source code, algorithms, and technical architecture of the Disclosing Party's analytics platform; (b) customer lists, pricing models, and business strategies; (c) financial statements and projections shared for due diligence purposes; (d) any information marked "Confidential" or which a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure; and (e) the existence, terms, and status of discussions between the Parties regarding the Purpose.

3. Obligations of Receiving Party

The Receiving Party shall: (a) use the Confidential Information solely for evaluating the Purpose; (b) restrict access to Confidential Information to employees and advisors with a genuine need to know, who are themselves bound by confidentiality obligations at least as protective as those herein; (c) not reverse-engineer, decompile, or attempt to derive the source code or underlying methodology of any software or algorithms disclosed; (d) promptly notify the Disclosing Party in writing of any unauthorized use or disclosure of Confidential Information upon becoming aware of the same; and (e) not use the Confidential Information to develop competing products or services for a period of 2 years from the date of disclosure.

4. Exclusions from Confidential Information

This Agreement imposes no obligation with respect to Confidential Information that: (a) was already known to the Receiving Party without confidentiality restrictions prior to disclosure, as evidenced by written records; (b) becomes publicly available through no breach of this Agreement; (c) is independently developed by the Receiving Party without reference to or use of the Confidential Information; or (d) is required to be disclosed pursuant to applicable law, regulation, or valid court order, provided that the Receiving Party gives prompt written notice to the Disclosing Party (to the extent legally permitted) to allow it to seek a protective order.

5. Term and Survival

This Agreement shall remain in effect for 3 years from the date of execution. The confidentiality obligations set forth in Clause 3 shall survive termination or expiration of this Agreement for an additional period of 5 years, except with respect to trade secrets, which shall remain protected for as long as they retain trade secret status under applicable law.

6. No Obligation to Proceed

Nothing in this Agreement shall be construed as an obligation on either Party to proceed with any transaction, enter into any further agreement, or continue discussions regarding the Purpose. Either Party may terminate discussions at any time without liability, subject to the surviving obligations under this Agreement.

7. Return or Destruction of Materials

Upon written request of the Disclosing Party, or upon termination of discussions regarding the Purpose, the Receiving Party shall, within 15 business days, return or destroy all documents and materials containing Confidential Information, and certify such destruction in writing, save for one archival copy retained solely for legal compliance purposes.

8. Remedies

The Parties acknowledge that a breach of this Agreement may cause irreparable harm not adequately compensable by monetary damages alone, entitling the non-breaching Party to seek injunctive relief and specific performance, in addition to any other remedies available at law or in equity, without the requirement to post bond.

9. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of India. Any dispute arising out of or relating to this Agreement shall first be attempted to be resolved amicably within 30 days; failing which, the dispute shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, seated at Noida, conducted by a sole arbitrator mutually appointed by the Parties, with proceedings conducted in English.

10. Miscellaneous

This Agreement constitutes the entire understanding between the Parties regarding its subject matter. No amendment shall be effective unless in writing and signed by both Parties. If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of substantially all assets.